IN THE NATIONAL COMPANY LAW TRIBUNAL

NEW DELHI, COURT – II

Item No. 207
CP(CAA)/58 /2020

IN THE MATTER OF:

Priority Vendor Technologies Private Limited. **...Applicant/Petitioner**

Versus

M/s. C2FO India Technologies Private Limited **...Respondent**

SECTION : 230-232 Second Motion

Order Delivered on 18.09.2020

CORAM:
SHRI. CH. MOHD. SHARIEF TARIQ
HON'BLE MEMBER (J)

SHRI L.N. GUPTA,
HON'BLE MEMBER (T)

PRESENT: Mr. Karanveer Jindal, Mr. Vipin Sharma for Petitioner

ORDER

CA 509/2020 in CP 58/2020 : Counsel for the Petitioner Company is present. He prayed for condonation of the delay of 111 days. During the course of hearing, the Counsel for the Petitioner Company submitted that though papers were completed in right time and sent vide mail for the purpose of signature of some of the officials of the Companies in Mumbai, they were received back very late due to the nationwide lockdown imposed subsequently.

The reason given is not a sufficient cause for condoning the delay. However, keeping in view in the interest of justice, fair play and the fact that the main Petition is under second motion, we are inclined to condone the delay in filing Petition for the Second Motion subject to payment of cost of Rs.15,000 to a registered Organization looking after the welfare of the blinds. The Petitioner Company after making payment will place the receipt on record on the next date.

Accordingly, the **CA stands disposed of**.

It is noted that the second motion matter has already been heard and order reserved. The matter is posted to the 25th September, 2020 for pronouncement of the order.

-Sd-

(L. N. GUPTA)
MEMBER (T)

-Sd-

(CH. MOHD. SHARIEF TARIQ)
MEMBER (J)

Parul